Ex Tempore

DUNHURAMAMBO (PVT) LTD t/a ZAMBEZI CRUISE & SAFARIS
versus
T P MASHAYAMOMBE N.O
and
CHARLES NIKOBASA

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 12 and 13 February 2026

Opposed application

J Wood for the applicant
G Sithole for the 2nd respondent
No appearance for the 1st Respondent.

DEME J: The Applicant approached this court seeking the review of the decision for taxation of costs in case numbers HCC4/22 and HCC8/22. Both cases were heard at Chinhoyi High Court. More particularly, the Applicant seeks the following relief:

> "1. The taxed bill of costs in Case No. HC4/22 and HC8/22 be reviewed to reflect a total of 12 hours for each bill of costs or US$7440.00 plus VAT and the Taxing Officer's fees at the tariff.
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> 2. The costs of taxation be struck out.
> 3. The costs of this application, if it is opposed, to be paid by the 2nd respondent's legal practitioners *de bonis propriis* and on the legal practitioner and client scale."

The application was opposed by the 2nd Respondent, who raised numerous points *in limine*. Firstly, the 2nd Respondent argued that the application was not served on the 1st Respondent. During oral submissions, Mr. Sithole raised a second point *in limine* related to the first point *in limine* to the effect that the 1st Respondent ought to have produced the report. On this basis, Mr. Sithole prayed for the dismissal of the application. By way of his third point *in limine*, Mr. Sithole prayed for the expungement of various documents from the record. He argued

that the first answering affidavit ought to be expunged from the record as it was improperly commissioned. He also advanced the argument that the second answering affidavit ought to be expunged from the record as it was filed without the leave of the court. Mr. Sithole also motivated the court to expunge annexure B to the founding affidavit on three grounds. Firstly, he argued that the document impugned was never served upon the 2nd Respondent. He also motivated this court to expunge the same document on the basis that the language in the document is not decorous. Mr. Sithole additionally contended that Annexure B to the founding affidavit never formed part of the 1st Respondent's record. In his opposing affidavit, the 2nd Respondent, as a fourth point *in limine*, averred that the Applicant ought to have filed the present application with the High Court station based at Chinhoyi, as this is where the main matters were finalized. However, during his oral submissions, Mr. Sithole did not insist on this aspect. Mr. Sithole also abandoned the point *in limine* that the present application does not comply with Rule 72(28). He submitted that this issue will be argued as part of the merits of the matter.

In his last point *in limine*, the 2nd Respondent affirmed that the application was filed out of time. This point *in limine* was determined by this court in judgment number HH278/25. The present application was once consequently struck from the roll. This court, in its operative provision, ruled that:

"1. The application is hereby struck off the roll.

2. The applicant shall bear the 2nd Respondent's costs of suit.

The Applicant subsequently sought condonation in case number HCH2647/25 following the decision of this court in judgment number HH278/25, where the application was struck from the roll. This court granted the application for condonation and reinstatement of the present application. In granting the application for condonation and reinstatement, this court, in judgment number HH606/25, ruled that:

> "1. The late filing of application No. HCH1468/24 be and is hereby condoned.
>
> 2. Case no. HCH1468/24 is hereby reinstated on the roll. The Registrar of the High Court is directed to allocate a hearing date for the applicant's court application for review of taxation case no. HCH1468/24 at the earliest available opportunity.

3. The costs of this condonation application shall be costs in the cause."

My responsibility is to deal with the points *in limine* raised by the 2nd Respondent, not necessarily in their order. In my view, the issue of the 1st Respondent's report is central to the resolution of the present application. Without the report of the 1st Respondent, this court will not be able to have a correct picture of what actually transpired before the 1st Respondent. For this reason, I will start by making a determination on this aspect.

It has been argued that the 1st Respondent must produce the report for the court. Mr. Sithole argued that failure to file the report must see the dismissal of the present application. Reference was made to the case of *Medworth Properties (Pvt) Ltd v Registrar of Supreme Court and Anor*[1]. Ms Wood disagreed with Mr. Sithole's submission. She argued that it is not the fault of the Applicant that the 1st Respondent failed to file the report. On this basis, she submitted that a prayer for dismissal of the present application is not the appropriate relief in the circumstances.

It is important to note that the 1st Respondent acts as a *quasi*-judicial officer when she made a decision for the taxation of costs in terms of Rule 72. In determining the question of costs, the 1st Respondent must consider the provisions of Rule 72(3) and (4). In terms of Rule 72(27), the 1st Respondent must produce a report within ten days from the date of being served with the application for review. In particular, the Subrule is as follows:

> "The taxing officer must, within ten days after having received the application file the report with the court and serve on the Applicant and the opposite party, providing reasons for decisions that were made which are being contested by the applicant."

It is apparent that the 1st Respondent has no choice but to produce the report upon being served with the application for review. In the case of *Medworth Properties (Pvt) Ltd* v *Registrar of Supreme Court and Anor supra*, UCHENA JA propounded the following remarks:

> "[21] Another preliminary issue raised concerns the absence of a Taxing Officer's report accompanying the counter- application for review. The applicant contended that the counter-application is fatally defective, in that no effort has been made to obtain the

[1] SC122/25.

Taxing Officer's report, which is indispensable for the proper adjudication of the matters under review.

[22] Rule 72 (27) of the High Court Rules, when read together with r 56 (3) of the Rules, sets out in clear and peremptory terms the obligations resting upon the Taxing Officer once an application for review of taxation has been filed. The rule provides that the Taxing Officer must, within ten days of receiving such application, prepare and file a report with the court, and serve the same on both the applicant and the opposite party.

[23] Importantly, the obligation to prepare and furnish a report upon the filing of a review of taxation lies squarely with the Taxing Officer. Once the application is launched, the Rules impose a duty on the officer, not on the applicant, to generate and file the report within the stipulated ten-day period. It is therefore not incumbent upon the applicant to solicit or procure the report; rather, it is a statutory obligation of the court's own administrative machinery through the Taxing Officer to file the report.

[24] The failure by the Taxing Officer to comply with this duty does not, in and of itself, render the review application fatally defective. Nonetheless, it bears emphasis that the rule employs peremptory language through the use of the word *"must"*. Such diction does not allow discretion, for it conveys a mandatory obligation incapable of circumvention. This position was duly articulated in *Mwenye* v *Lonhro Zimbabwe* 1999 (2) ZLR 429 (S) at p 433 A-C where this Court stated as follows:

> "The categorization of an enactment as "peremptory" or "directory" with the consequent strict approach that if it be the former it must be obeyed or fulfilled exactly, while if it be the latter substantial obedience on fulfilment will suffice, no longer finds favour in our courts. See *Swift Transport Service (Pvt) Ltd* v *Pitman NO & Ors* 1975 (2) ZLR 226(G) at 228c-229c, *Macara* v *Minister of Information Immigration and Tourism & Anor* 1977(1) ZLR 67 (6D) at 70H, *Ex Parte Ndlovu* 1981 ZLR 216 (G) at 217 F-G; *Sterling Products International Ltd* v *Zulu* 1988 (2) ZLR 293 (S) AT 301H.
>
> The proper criterion in determining whether there has been compliance is not the quality of the injunction, but the object the legislature sought to achieve by it. The question is simply whether that object is defeated or frustrated by the non-compliance complained of."

[25] Rules of court cannot be treated as optional. To lightly disregard them is to strip them of all meaning and to undermine the integrity of the judicial process.

[26] The rationale of the report is self-evident. The report of the Taxing Officer provides the Court with the reasoning and considerations which informed the decision under challenge, thereby enabling the court to properly exercise its supervisory jurisdiction. Without such a report, the court is left with little more than the bare assertions of the parties, deprived of the Taxing Officer's own account of how discretion was applied. It ensures transparency,

prevents speculation as to the basis of the contested rulings, and enables the court to discharge its supervisory function with the requisite precision. In this respect, the duty imposed by the rules is critical in that it operates as the cornerstone of any review of taxation.

[27] A report must accompany every application for review. In this context, it must further be emphasised that a counter-application is not subsumed within, or excused by, the compliance of the main application. Each application is a self-standing proceeding, and must individually satisfy the procedural requirements prescribed by the Rules. The counter-application, therefore, cannot ride on the procedural compliance of the principal application, but must be supported by its own record, including the report of the Taxing Officer. The objection is meritorious. However, while it is beyond dispute that the counter-application constitutes a standalone proceeding, it is still a counter to the principal review. It exists in response to the main application and is inextricably linked to it in context and purpose. Notably, the counter-application does not possess its own case number, which means there is no procedural mechanism to revive it once the Taxing Officer's report becomes available.

[28] *In casu,* the predominant consideration is whether the Court is sufficiently appraised of the reasons underlying the contested items so as to discharge its review function. In the interests of justice, such reasons may be gleaned from the record itself or from the report filed for the main application. In the present matter, the second respondent, in his counter-application, sought to impugn the allowance of items 9, 25, as well as the costs awarded for drawing the bill of costs and attending the taxation hearing. Yet, in the report attached to the principal application, the Taxing Officer addressed item 9 in para 3.2 and item 25 in para 3.5, thereby placing her reasoning before the court. Accordingly, the substance of the Taxing Officer's justification in respect of those items is already part of the record, and the counter applicant suffers no prejudice, since the rationale underlying the Registrar's decision is already on record."

In *casu*, the court is deprived of an opportunity of exercising its review powers without the report of the 1st Respondent. In this connection, the 1st Respondent's report is an indispensable component for any application for review of taxation. Mr. Sithole prayed for the dismissal of the application based on this point *in limine*. The decision of *Medworth Properties (Pvt) Ltd supra* makes it clear that the failure by the 1st Respondent to file the report does not nullify the application for review. Reference is made to paragraph 24 of the judgment. In my view, there is a need to ensure that the report of the 1st Respondent is produced to enable the court to assess the basis upon which the decision for taxation was arrived at. I am unable to deal with the rest of the issues in the absence of the 1st Respondent's report. The duty to ensure that

the court is favoured with the report lies on the 1st Respondent and not on the Applicant. Reference is made to paragraphs 22 and 23 for the judgment of *Medworth Properties (Pvt) Ltd supra*.

In the circumstances, the matter must be removed from the roll to enable the production of the report by the 1st Respondent. The rest of the points *in limine* and the merits can only be determined after the report has been filed before this court. Proceeding to determine this matter in the absence of the 1st Respondent's report may promote admission of hearsay evidence by the parties. None of the parties is aware of the basis upon which the 1st Respondent reached her conclusion in the manner she did.

On the question of costs, an order that costs remain in the cause is appropriate in the circumstances. This point *in limine* was only raised during oral submissions. It would be unfair for this court to punish the Applicant with an order of costs for the issue that only emerged during the hearing of this matter. Accordingly, the following order is made:

1. The application be and is hereby removed from the roll pending the production of the report by the 1st Respondent.
2. The 1st Respondent be and is hereby directed to produce a report for taxation of costs in case numbers HCC4/22 and HCC8/22 within ten days from the date of being served with this judgment.
3. The Applicant shall serve the 1st Respondent with a copy of this judgment within five days from the date of this judgment.
4. Costs shall be in the cause.

DEME J. …….....

Warhurst Attorneys, applicant's legal practitioners
Mushuma Law Chambers, 2nd respondent's legal practitioners